

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

----- X
RAUL PONCE,

Plaintiff,

- against -

THE CITY OF NEW YORK, a municipal entity;
and New York City Police Officers RONALD
HOBSON (Shield #17689), and JOHN DOE, in their
individual capacities,

Defendants.
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Index No.:
Date Purchased:

SUMMONS

Plaintiff designates Bronx
County as place of trial.

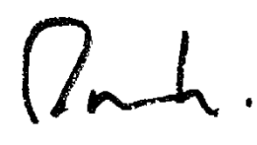
The basis of venue is the location
of the unlawful acts

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of
your answer, or, if the complaint is not served with this summons, to serve a notice of appearance,
on the Plaintiff's attorney within **20** days after the service of this summons, exclusive of the day
of service (or within **30** days after the service of this summons if not personally delivered to you
within the State of New York); and in case of your failure to appear or answer, judgment will be
taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
September 5, 2018

BELDOCK LEVINE & HOFFMAN LLP

By:  

Luna Droubi
99 Park Avenue, PH/26th Fl.
New York, New York 10016
(212) 490-0400
Attorneys for Plaintiff

To:

City of New York
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007

Officer RONALD HOBSON (Shield #17689)
New York Police Department, 45th Precinct
2877 Barkley Ave
Bronx, NY 10465

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VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff RAUL PONCE, by his attorneys, Beldock Levine & Hoffman LLP, as and for
their Complaint against the Defendants, allege as follows:

PRELIMINARY STATEMENT

1. This civil rights action seeks redress under 42 U.S.C. § 1983 and New York State
law for injuries Plaintiff sustained when New York City Police Officers arrested and prosecuted
him without cause.

2. On September 24, 2017, Mr. Ponce had been sleeping in his car for hours when he
was awoken by NYPD officers. The officers then falsely arrested, and maliciously prosecuted Mr
Ponce without probable cause or reasonable suspicion.

3. Plaintiff remained in custody for approximately 20 hours before he was released on
his own recognizance.

4. Plaintiff seeks (i) compensatory damages for, *inter alia*, false imprisonment,
psychological and emotional distress, and other financial loss caused by the illegal actions of the
defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled

constitutional law; and (iii) such other and further relief, including costs and attorney's fees, as this Court deems equitable and just.

JURISDICTION

5. This civil rights action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Plaintiff's rights secured by the Fourth and Fourteenth Amendments of the United States Constitution; the New York State Constitution; and for violations of Plaintiff's rights under New York State common law.

6. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

7. Pursuant to CPLR §§ 503 and 504, venue is proper in Bronx County because it is the county in which the events giving rise to this action took place.

JURY DEMAND

8. Plaintiff demands a trial by jury in this action on each and every one of their claims for which a jury trial is legally available.

THE PARTIES

9. Plaintiff RAUL PONCE is a citizen of the United States and a current resident of the State of New York, County of Bronx. At all times relevant to this complaint, Plaintiff was a resident of Miami, in Miami-Dade County, in the State of Florida.

10. Defendant THE CITY OF NEW YORK ("the City") is a municipal entity created and authorized under the laws of the State of New York.

11. The City is authorized by law to maintain a police department, and does maintain the New York City Police Department ("NYPD"), which acts as its agent in the area of law

enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers.

12. Defendant RONALD HOBSON (Shield No. 17689) is a New York City Police Officer who made false allegations that led to Plaintiff's false arrest and unlawfully detained and arrested Plaintiff without suspicion of any illegal activity.

13. Defendant New York City Police Department Officer JOHN DOE is a NYPD Police Officer who unlawfully detained and arrested Plaintiff without suspicion of any illegal activity.

14. At all times relevant herein, Defendants HOBSON and JOHN DOE (together referred to as the "Individual NYPD Officer Defendants") have acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the City of New York (the "City") and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the City and/or the NYPD.

15. At all times relevant herein, Defendants HOBSON and JOHN DOE violated clearly established rights and standards under the Fourth and Fourteenth Amendments to the United States Constitution of which a reasonable police officer in their circumstances would have known.

STATEMENT OF FACTS

16. Though born and raised in the Bronx, Plaintiff Raul Ponce had been a resident of Miami, Florida since the early 1990s.

17. In early September 2017, Hurricane Irma, a category 4 hurricane, was imminently headed for Miami. As a result, residents were told to evacuate immediately.

18. On or about September 4, 2017, Mr. Ponce escaped the storm by driving to New York City to visit his daughter and other family members.

19. Mr. Ponce stayed with his daughter for approximately two weeks.
20. On September 22, 2017, Mr. Ponce attended a family reunion on his final night before heading back to Miami, Florida the next day.
21. After the family reunion, a number of family members invited Mr. Ponce out to a nearby bar.
22. A family member who was the designated driver for the evening drove Mr. Ponce from the family reunion to a bar nearby.
23. They parked on the corner of Morris Avenue and East 183rd Street.
24. At approximately 2:00 a.m., while at the bar, Mr. Ponce felt ill and told his family members that he was going to sleep in his car until the designated driver was available to drive him to his daughter's house.
25. Mr. Ponce threw up near his car. He then got into his car, put the driver's seat all the way back, and fell asleep.
26. Mr. Ponce did not drive or operate his vehicle.
27. Mr. Ponce did not turn his vehicle on.
28. Mr. Ponce simply unlocked the car, sat in the driver's seat, put the seat all the way down so that he could lay down, and then fell asleep.
29. On September 23, 2017 at approximately 4:40am, Officer HOBSON and Officer JOHN DOE knocked on the window of Mr. Ponce's car, waking Mr. Ponce.
30. The officers forced Mr. Ponce out of the car and told him to call his daughter to pick up both him and his car.
31. While waiting for Mr. Ponce's daughter to arrive, Defendant Officer HOBSON decided to arrest Mr. Ponce without cause.

32. Mr. Ponce was taken to the 45th Precinct.
33. Mr. Ponce repeatedly asked for the basis of the arrest, but was never told.
34. Approximately 8 hours later, at noon on September 24, 2017, Mr. Ponce was transferred to Central Booking.
35. Approximately 3 hours later, at approximately 3:00 p.m., Mr. Ponce was finally released on his own recognisance.
36. However, based on the false charges that remained pending against him, Mr. Ponce's driver's licenses including his professional license was suspended.
37. Mr. Ponce, who had been a truck driver for nearly 20 years, was unable to gain employment.
38. Because he could not afford to continue commuting from Miami to New York, Mr. Ponce was forced to move from his home in Miami to New York City to fight the baseless charges lodged against him.
39. Mr. Ponce fought the false charges against him for six months.
40. On March 20, 2018, all charges against Mr. Ponce were dismissed.
41. As a result of the foregoing, Plaintiff sustained, *inter alia*, emotional distress, mental anguish, shock, embarrassment, humiliation, loss of liberty, physical restraints, and violations of their constitutional rights.

FIRST CAUSE OF ACTION
42 U.S.C. § 1983
(against Individual NYPD Officer Defendants)

42. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

43. In committing the acts and omissions complained of herein, Defendant HOBSON and Defendant NYPD Officer JOHN DOE, acting under color of state law, deprived Plaintiff of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from arrest without probable cause;
- b. the right to be free from the creation of false, fabricated evidence;
- c. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiffs were aware and to which they did not consent; and
- d. the right to be free from the use of excessive and unreasonable force and seizure.

44. In committing the acts and omissions complained of herein, Defendants HOBSON and DOE, breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

45. As a direct and proximate result of the actions of Defendants HOBSON, and Defendant NYPD Officer JOHN DOE, including deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

46. The unlawful conduct of Defendants HOBSON and DOE was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION
Violations of New York State Constitution
(against Individual NYPD Officer Defendants)

47. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

48. Defendants subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of rights, privileges, and immunities guaranteed by Article 1, § 6 and 12 of the New York State Constitution, including, without limitation, the right to due process and the right to be free from unreasonable searches and seizures.

49. As a direct and proximate result of Defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered the injuries and damages set forth above.

THIRD CAUSE OF ACTION
Assault and Battery

50. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

51. Defendants HOBSON and DOE, without just cause, wilfully and maliciously used physical force against Plaintiff, causing them injuries.

52. Defendants HOBSON and DOE committed the foregoing acts intentionally, wilfully, and with malicious disregard for Plaintiff's rights, and are therefore liable for punitive damages.

FOURTH CAUSE OF ACTION
False Imprisonment

53. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

54. Defendants HOBSON and DOE, through the foregoing acts, caused Plaintiff to be wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiff were aware and to which they did not consent.

55. Defendants HOBSON and DOE committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

FIFTH CAUSE OF ACTION
Malicious Prosecution

56. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

57. Defendants HOBSON and DOE, through the foregoing acts, maliciously commenced criminal proceedings against Plaintiff, which ended in their favor, without probable cause to believe Plaintiff was guilty of the crimes charged.

58. Defendants HOBSON and DOE committed the foregoing acts intentionally, willfully, and maliciously, and are therefore liable for punitive damages.

SIXTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

59. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

60. Defendants HOBSON and DOE, through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally, and/or recklessly caused Plaintiff to experience severe mental and emotional distress, pain, suffering, and damage to name and reputation.

61. Defendants HOBSON and DOE committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from Defendants HOBSON and DOE to the extent allowable by law;
- (c) attorneys' fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
September 5, 2018



Luna Droubi (LD7275)
BELDOCK LEVINE & HOFFMAN LLP
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New York, New York 10016
(212) 490-0400

Attorneys for Plaintiff Raul Ponce

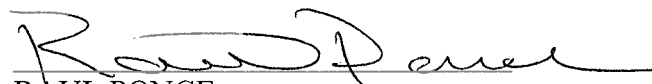
VERIFICATION

RAUL PONCE, being duly sworn, deposes and says:

Deponent is the plaintiff in the within action. Deponent has read the foregoing Verified Complaint and knows the contents thereof; the same is true of deponent's own knowledge except as to matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes them to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: *September 5, 2018*


RAUL PONCE

Sworn to before me this
5th day of September, 2018



Notary Public